

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
ANTHONY BENJAMIN,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. JEAN MARTINEZ,
SGT. DANIEL TRANCUCCHI, and POLICE OFFICERS
JOHN DOES I - V, meant to designate offending officers,
Individually and in their official capacities,

The basis of venue is:
CPLR 504 (3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
January 12, 2024


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept. , New York, New York 10007

P.O. JEAN MARTINEZ, Shield 1482, Patrol Boro Bronx, 49th Precinct
SGT. DANIEL TRANCUCCHI, Shield 3225, Patrol Boro Bronx, 49th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANTHONY BENJAMIN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. JEAN MARTINEZ,
SGT. DANIEL TRANCUCCI, and POLICE OFFICERS
JOHN DOES I - V, meant to designate offending officers,
Individually and in their official capacities,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF ANTHONY BENJAMIN

1. At the time of the commencement of this action, plaintiff ANTHONY BENJAMIN was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about November 25, 2022 P.O. JEAN MARTINEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about November 25, 2022, at approximately 7:30 P.M., P.O. JEAN MARTINEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about November 25, 2022 SGT. DANIEL TRANCUCCI was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about November 25, 2022, at approximately 7:30 P.M., SGT. DANIEL TRANCUCCI was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about November 25, 2022, POLICE OFFICERS JOHN DOE I - V were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
10. That on and about November 25, 2022, at approximately 7:30 P.M., said POLICE OFFICERS JOHN DOE I - V were working and acting within the scope of their employment as a Police Officers, and under the color of law.

11. That on or about November 25, 2022 at approximately approximately 7:30 P.M., plaintiff was lawfully present at or near the vicinity of The Northeast corner of East 228th Street and White Plains Road, Bronx, New York plaintiff.

12. That at and about the above time and approximate place plaintiff became aware of a vehicle approaching him while he was crossing the street that failed to yield the right of way. Plaintiff and the police officer occupants of said vehicle had words, to which, apparently, the officers took offense.

13. Plaintiff was subsequently tacked from behind by an officer and landed face down on the pavement. The officers violently and viciously battered and assaulted plaintiff without justification.

14. That offending officers did utilize unnecessary unjustified excessive force upon plaintiff, which constituted an assault and battery upon plaintiff.

15. That at the above time and place the plaintiff ANTHONY BENJAMIN was assaulted and improperly arrested and confined without privilege, knowledge of warrant, proper authority nor justification, having no reason in law or in fact to assault, arrest or confine ANTHONY BENJAMIN.

16. That the defendants, their agents, servants and/or employees arrested the plaintiff ANTHONY BENJAMIN without any basis in law or fact and without reasonable, probable or just cause or justification.

17. That the defendants, their agents, servants and/or employees arrested the plaintiff ANTHONY BENJAMIN without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

18. That the defendants, their agents, servants and/or employees unlawfully arrested, searched and detained the plaintiff ANTHONY BENJAMIN, who was aware of his unlawful detention and confinement, and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

19. That plaintiff was forcibly detained, including being restrained by hand cuffs and by other means, which necessarily constituted additional unwanted touching, thereby further assaulting and battering plaintiff.

20. That plaintiff was transported in restraints to the 47th Police Precinct where he was placed in a jail cell and ultimately transported while physically restrained a hospital.

21. Thereafter Plaintiff was transported, in restraints, to Bronx County Central Booking where his detention continued.

22. That the defendants P.O. JEAN MARTINEZ, SGT. DANIEL TRANCUCCHI, and OFFICERS JOHN DOE I - V, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

23. Thereafter, plaintiff was remanded to the custody of the Rikers island Correctional Facility where he was held in squalid, threatening and dangerous conditions though approximately December 1, 2022.

24. Thereafter Plaintiff was required to defend his liberty in court through January 19, 2023 when all criminal charges were dismissed and the prosecution, initiated without probable cause and with actual malice, was terminated in Plaintiff's favor.

25. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause maliciously.

26. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, to obtain overtime pay and/or for employment advancement and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

27. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and utilizing excessive unnecessary force are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

28. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeen,

whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

29. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

30. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

31. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent persons for such charges as disorderly conduct in ill-fated attempts at justifying their own misconduct, or in retaliation for legal behaviors not to the arresting officers liking, and in an effort to

subjugate certain minority male populations as an excuse for selectively enforcing supposed 'quality of life' violations.

32. Said practice and procedure of falsely arresting innocent persons on such charges as resisting arrest and disorderly conduct is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs in retaliation and in ill-fated attempts at justifying their own wrongful conduct.

33. For instance, statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein.

34. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the New York City Police Department routinely fails to discipline officers who have

engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein. Said practices have continued unabated as exemplified since Mollen Commission report which found that the NYPD periodically goes through cycles of corruption and ill-fated reform.

35. While numerous high profile cases demonstrate this practice, such as the de minimis discipline of the police officers who caused or contributed to the deaths Amadou Diallo and Noel Polanco or the assault upon James Blake, thousands of other individuals have been victims of this practice, including the Plaintiff herein, who garner no publicity but who are necessarily known by the Defendants by virtue of the claims and actions brought and filed against such officers who engage in such nefarious and brutal actions yet receive little or no repercussions or discipline as detailed above.

36. That no negligence or actions on the part of the plaintiff ANTHONY BENJAMIN contributed to the occurrences alleged herein in any manner whatsoever.

37. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

38. That as a result of the foregoing, the plaintiff ANTHONY BENJAMIN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF ANTHONY BENJAMIN

39. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 38 as though more fully set forth herein.

40. That on August 1, 2023, the New York City Law Department entered a Stipulation under Bronx Supreme Court Index No. 808798/2023E whereat plaintiff had caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, nunc pro tunc, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

41. At least thirty (30) days have elapse prior to the commencement of this action and adjustment of payment thereof be neglected or refused by the defendant.

42. Defendant demanded a General Municipal Law §50-h hearing and plaintiff did appear and testify at said hearing on November 9, 2023.

43. This action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based or within the time allowed by law.

44. That on or about November 25, 2022 at approximately 7:30 P.M., at or near the vicinity of The Northeast corner of East 228th Street and White Plains Road, Bronx, New York, the plaintiff ANTHONY BENJAMIN was improperly arrested and confined without privilege, knowledge of warrant, proper authority, justification nor reasonable or probable cause, having no reason in law or in fact to arrest ANTHONY BENJAMIN.

45. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff ANTHONY BENJAMIN of Due Process under Law.

46. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, P.O. JEAN MARTINEZ, SGT. DANIEL TRANCUCCI, POLICE OFFICERS JOHN DOE I - V were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

47. That the plaintiff ANTHONY BENJAMIN, being aware of his unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. JEAN MARTINEZ, SGT. DANIEL TRANCUCCI and it POLICE OFFICERS JOHN DOE I - V.

48. That no negligence or actions on the part of the plaintiff ANTHONY BENJAMIN contributed to the occurrences alleged herein in any manner whatsoever.

49. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

50. That as a result of the foregoing, the plaintiff ANTHONY BENJAMIN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ANTHONY BENJAMIN

51. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 50 as though more fully set forth herein.

52. That during his aforesaid arrest, the defendants, their agents, servants and/or employees utilized unnecessary, excessive and unjustified force against the plaintiff.

53. That the actions herein described, by the defendants, their agents, servants and / or employees , constituted assaults and battery upon Plaintiff.

54. As a result of the aforesaid assaults, plaintiff ANTHONY BENJAMIN received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

55. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

56. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

57. That as a result of the foregoing, the plaintiff ANTHONY BENJAMIN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ANTHONY BENJAMIN

58. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 57 as though more fully set forth herein.

59. That defendants, their agents, servants and/or employees initiated a prosecution of plaintiff and continued to threaten plaintiff's liberty and freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

60. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

61. That the defendants P.O. JEAN MARTINEZ, SGT. DANIEL TRANCUCCHI, and OFFICERS JOHN DOE I - V, did knowingly and maliciously provide false information to the prosecutor of the criminal action and/or falsely and/or misleadingly provide sworn testimony or statements against Plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

62. That all criminal charges brought against plaintiff, which were brought under Docket number CR-021509-22BX in the Criminal Court of the City of New York, Bronx County regarding the incidents of November 25, 2022, were dismissed on January 19, 2023, and the criminal prosecution was terminated in Plaintiff's favor.

63. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of ANTHONY BENJAMIN.

64. As a result of the malicious prosecution, Plaintiff's liberty was threatened and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately fifty five days.

65. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

66. That as a result of the foregoing, the Plaintiff ANTHONY BENJAMIN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ANTHONY BENJAMIN

67. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 66 as though more fully set forth herein.

68. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

69. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the proper use of force.

70. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff ANTHONY BENJAMIN was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

71. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third, Fourth and Fifth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

January 12, 2024



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff

ANTHONY BENJAMIN

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept. , New York, New York 10007

P.O. JEAN MARTINEZ, Shield 1482, Patrol Boro Bronx, 49th Precinct
SGT. DANIEL TRANCUCCHI, Shield 3225, Patrol Boro Bronx, 49th Precinct

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

ANTHONY BENJAMIN

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is presently outside of the county wherein your affirmant maintains an office.

DATED: Bronx, N.Y.

January 12, 2024



JONATHAN L. GLEIT, ESQ.